

		however, plaintiff's theory of employer Sugar Transport's separate liability was based solely on the theory of employer negligence in hiring and retaining Carcamo as a driver. As Sugar Transport's admission of vicarious liability triggered the principles of <i>Armenta</i>, [], we need not address other theories of employer liability, separate from and independent of the employee-driver's negligence." <i>Id.</i> at fn.1. Third, Central's concerns about discovery ring hollow. Specifically, Central contends discovery regarding "the driver qualification, training, supervision, safety, dispatch, prior-incident, and maintenance," will be "highly prejudicial to Central." Reply at p.4. But discovery regarding these matters go not only to Central's negligence, but also to the driver's own negligence. Even if the Court were to strike the claim for negligent hiring or retention, the issue whether the driver was qualified, properly trained, etc. is directly relevant to whether he was negligent. Although the motion to strike is denied, the Court will—assuming admission of vicarious liability--exclude evidence and argument at trial which is relevant only to negligent training, retention, etc. As to Defendants' alternative motion for judgment, Defendants put forth no real arguments. However, to the extent Defendants are relying on <i>Diaz</i> to request judgment on the pleadings, that too is improper. For judgment on the pleadings, Civ. Proc. Code § 438(c)(1)(B)(ii) requires that "[t]he complaint does not state facts sufficient to constitute a cause of action against that defendant." A motion for judgment on the pleadings has the same function as a demurrer, and "[o]rdinarily, a general demurrer does not lie as to a portion of a cause of action, and if any part of a cause of action is properly pleaded, the demurrer will be overruled." (<i>Fire Ins. Exch. v. Superior Ct.</i> (2004) 116 Cal. App. 4th 446, 452.) As noted in the motion to strike section, at most, the phrase "entrusted" would be superfluous if Central accepts vicarious liability for the actions of Horne. Plaintiff has still alleged a general cause of action for negligence against Central. As such, the court cannot grant a motion for judgment on the pleadings as to only one word. The alternative request is also denied. Plaintiff to give notice.
4	Quick Bridge Funding, LLC v. Atlanta Home Professional Contractors, LLC, et. al.	Before the court is Plaintiff Quick Bridge Funding, LLC's unopposed Motion for Summary Judgment against Defendants Atlanta Home Professional Contractors LLC (Atlanta), Kennen Lock and James Adair. The motion is GRANTED, as set forth herein. On 3/5/26, Plaintiff filed a complaint alleging a cause of action for breach of contract against Atlanta and breach of guaranty against Lock and Adair. Attached as Exhibit 1 to the Complaint is the Business Loan Agreement dated 6/19/25 executed by Atlanta, along

with the concurrently executed Personal Guaranty executed by Lock and an Unconditional Guaranty executed by Adair.

"A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc., § 437c(a)(1).)

Where a plaintiff seeks summary judgment, the burden is to produce admissible evidence on each element of a "cause of action" entitling him or her to judgment. (Code Civ. Proc. § 437c(p)(1); S.B.C.C., Inc. v. St. Paul Fire & Marine Ins. Co. (2010) 186 Cal.App.4th 383, 388.) This means that plaintiffs who bear the burden of proof at trial by a preponderance of evidence must produce evidence that would require a reasonable trier of fact to find any underlying material fact more likely than not. "[O]therwise, he would not be entitled to judgment as a matter of law." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 851; LLP Mortg. v. Bizar (2005) 126 Cal.App.4th 773, 776.) At that point, the burden shifts to defendant "to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto." (Code Civ. Proc. § 437c(p)(1).)

"The elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff. [Citation.]" (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821; *Professional Collection Consultants v. Lauron* (2017) 8 Cal.App.5th 958, 968.) "A lender is entitled to judgment on a breach of guaranty claim based upon undisputed evidence that (1) there is a valid guaranty, (2) the borrower has defaulted, and (3) the guarantor failed to perform under the guaranty. [Citation.]" (*Gray1 CPB, LLC v. Kolokotronis* (2011) 202 Cal.App.4th 480, 486.)

Here, the Motion is supported by Sandra Otero, Chief Operating Officer of Plaintiff, who is one of the custodians of records kept by Plaintiff in the course of its business of financing loan transactions. Plaintiff has met its initial burden of production, as it has produced evidence to support each element of the causes of action for breach of contract and breach of guaranty. (Code Civ. Proc., § 437c(p)(1).) Further, plaintiff has submitted evidence showing that after crediting the payments received, the remaining unpaid loan balance is \$76,725. (Otero Decl. ¶18; Payment History at Exh. 2)

There is no opposition. Therefore, all of plaintiff's evidence is undisputed.

In light of the above, Plaintiff's unopposed motion for summary judgment is GRANTED.

The Case Management Conference on calendar for 9/14/26 is ordered vacated.

		Counsel for Plaintiff is ordered to give notice and submit a proposed judgment with a proof of service within 15 days
5	Doe 1 v. Crossline Community Church	O/C
6	Casares vs. City of Newport Beach	Defendant City of Newport Beach's ("Defendant") Motion for Summary Judgment is GRANTED. Defendant moves for summary judgment against plaintiff Kelly Casares's ("Plaintiff") complaint on the bases that 1) Plaintiff's lawsuit is barred by the statute of limitations; 2) Defendant is not liable to injuries caused by a plan or design; and 3) Plaintiff cannot establish Defendant had actual or constructive knowledge of a dangerous condition. (Civ. Proc. Code § 437c(p)(2).) 1) Statute of Limitations As to the statute of limitations, Gov't. Code § 911.2 requires that a claim for damages for any cause of action other than an action for death or personal injury should be made "not later than six months after the accrual of the cause of action." Upon presentation of the claim, the entity may: (1) reject the claim, (2) allow the claim, (3) allow or reject the claim in part, or (4) compromise the claim. (Gov't. Code § 912.6.) A plaintiff must commence a suit against the public entity no later than six months after the date the notice of rejection is personally delivered or deposited in the mail. (Gov't. Code § 945.6(a)(1).) However, if the public entity fails to provide written notice in accordance with the service requirements of section 913, a claimant has two years from the accrual of the cause of action to file suit. (Gov't. Code § 945.6(a)(2).) Defendant produced evidence that Defendant, through its claims administrator AdminSure, served a rejection of Plaintiff's claim on 03/20/24. (Santos Decl. ¶¶ 2, 8-18, Ex. B.) The Rejection complied with Gov't. Code § 913 and notified Plaintiff of the filing deadline for any lawsuit based upon the Claim. That Plaintiff claims she did not receive the rejection does not support overcoming the six month limitations period. (<i>Him v. City & Cnty. of San Francisco</i> (2005) 133 Cal. App. 4th 437, 445-46.) Defendant met its initial burden on the statute of limitations having run prior to the complaint being filed. Plaintiff argues Defendant is estopped from claiming the statute of limitations. "The elements of equitable estoppel have been applied in the government claims context. "(1) [T]he party to be estopped [here, the District] must be apprised of the facts; (2) he must intend that his conduct shall be acted upon, or must so act that the party asserting the estoppel had a right to believe it was so intended; (3) the other party [here, J.M.] must be ignorant of the true state of facts; and (4) he must rely upon the conduct to his injury."`" (<i>J.M. v. Huntington Beach Union High Sch. Dist.</i> (2017) 2 Cal. 5th 648, 656.) Plaintiff produced evidence Defendant was aware of the facts regarding the injury, claim, rejection, and limitations period, yet AdminSure staff allegedly told Plaintiff's